

HOUSE No. 4342

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1309) of Lindsay N. Sabadosa relative to reimbursements of costs for medically appropriate evaluations and management services in outpatient settings, reports recommending that the accompanying bill (House, No. 4342) ought to pass.

For the committee,

JAMES M. MURPHY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act assuring prompt access to health care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 34 the following section:

3 Section 35: Reimbursement of costs for medically appropriate evaluation and
4 management services in outpatient settings, including but not limited to office- and hospital-
5 based clinics, in accordance with guidelines developed by the division of insurance, shall be part
6 of a basic benefits package offered by the insurer or a third party and shall not require a
7 deductible; provided, however, that deductibles shall be required if the applicable plan is
8 governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result
9 of the prohibition on deductibles for these services.

10 SECTION 2. Chapter 32B of the General Laws is hereby amended by inserting after
11 section 29 the following section:

12 Section 30: Reimbursement of costs for medically appropriate evaluation and
13 management services in outpatient settings, including but not limited to office- and hospital-

14 based clinics, in accordance with guidelines developed by the division of insurance, shall be part
15 of a basic benefits package offered by the insurer or a third party and shall not require a
16 deductible; provided, however, that deductibles shall be required if the applicable plan is
17 governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result
18 of the prohibition on deductibles for these services.

19 SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting, before
20 section 47CCC, the following section:-

21 Section 47AAA: Reimbursement of costs for medically appropriate evaluation and
22 management services in outpatient settings, including but not limited to office- and hospital-
23 based clinics, in accordance with guidelines developed by the division of insurance, shall be part
24 of a basic benefits package offered by any blanket or general policy of insurance described in
25 subdivision (A), (C), or (D) of section one hundred and ten which is issued or subsequently
26 renewed by agreement between the insurer and the policyholder, within or without the
27 commonwealth, during the period within which this premium is effective, or any policy of
28 accident or sickness insurance as described in section one hundred and eight which provides
29 hospital expense and surgical expense insurance and which is delivered or issued for delivery or
30 subsequently renewed by agreement between the insurer and the policyholder in the
31 commonwealth, during the period within which this provision is effective, or any employers'
32 health and welfare fund which provides hospital expense and surgical expense benefits and
33 which is issued or renewed to any person or group of persons in the commonwealth, during the
34 period within which this provision is effective, and shall not require a deductible; provided,
35 however, that deductibles shall be required if the applicable plan is governed by the Federal

Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on deductibles for these services.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8DDD, the following section:-

Section 8EEE: Reimbursement of costs for medically appropriate evaluation and management services in outpatient settings, including but not limited to office- and hospital-based clinics, in accordance with guidelines developed by the division of insurance, shall be part of a basic benefits package offered by the insurer or a third party and shall not require a deductible; provided, however, that deductibles shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on deductibles for these services.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after section 4DDD the following section:-

Section 4EEE: Reimbursement of costs for medically appropriate evaluation and management services in outpatient settings, including but not limited to office- and hospital-based clinics, in accordance with guidelines developed by the division of insurance, shall be part of a basic benefits package offered by the insurer or a third party and shall not require a deductible; provided, however, that a deductible shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on deductibles for these services.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 33 the following section:-

58 Section 34: Reimbursement of costs for medically appropriate evaluation and
59 management services in outpatient settings, including but not limited to office- and hospital-
60 based clinics, in accordance with guidelines developed by the division of insurance, shall be part
61 of a basic benefits package offered by the insurer or a third party and shall not require a
62 deductible; provided, however, that a deductible shall be required if the applicable plan is
63 governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result
64 of the prohibition on deductibles for these services.